

ASSOCIATED SUPPLY COMPANY, INC. ("ASCO")**P.O. Box 3888, Lubbock, Texas 79452****PHONE 806-745-2000****FAX 806-745-3115****CREDIT APPLICATION AND AGREEMENT**

BY SIGNING THIS AGREEMENT, YOU REPRESENT, WARRANT AND AGREE THAT YOU ARE EITHER (1) A SOLE PROPRIETOR, OR (2) AUTHORIZED BY THE BUSINESS TO ENTER INTO AND SIGN THIS AGREEMENT ON BEHALF OF THE BUSINESS.

50,000

CREDIT LIMIT DESIRED: _____**Legal Name of Business** (the "Applicant" or the "Business"): Terrafirma, Inc. _____**Assumed Name/ DBA:** Terrafirma Technologies _____**Business Entity:** (Check appropriate box):☐ Sole Proprietorship ☐ General Partnership ☐ Limited Partnership ☐ Limited Liability Company ☒ Corporation☐ Other: _____**Federal Tax Identification Number (Social Security Number for Sole Proprietor):** 93-4636078 _____**Billing Address:** 12500 Nutty Brown Rd _____ City: Austin _____ State: TX _____ Zip: 78737 _____**Street Address:** 12500 Nutty Brown Rd _____ City: Austin _____ State: TX _____ Zip: 78737 _____**Business Phone:** 609-923-2117 _____ **Accounting Phone:** 347-285-1747 _____ **Fax:** n/a _____**Nature of Business:** Excavation and Site Prep _____**Ownership Information:**

(A) Names of Owners, Partners, or Officers (B) Title or Position	(C) Driver's License No. / State	(D) Date of Birth (E) Cell Phone No.	(F) Home Address
1. (A) Noah Schochet - CEO (B)	(C) n/a	(D) 1 (860) 395-9357 (E)	(F) n/a
2. (A) Noah McGuiness - CTO (B)	(C) n/a	(D) 1 (972) 816-6228 (E)	(F) n/a
3. (A) n/a (B)	(C) n/a	(D) n/a (E)	(F) n/a

Accounts Payable Information:

Name of Accounts Payable Contact:	Phone Number:	Email:
Yonaton Lubin	347-285-1747	ylubin@terrafirma.inc

Bank Reference:

(A) Name of Bank (B) Name of Banker	(C) Account Number (D) Average Daily Balance	(E) Bank Address (F) Phone Number	(G) When Opened (H) Remarks
(A) Column NA - Brex (B)	(C) 2945322928888888 - over 2 (D) million	(E) 1 Letterman Drive, Building A, Suite A4-700 San Francisco, (F) California 94129	(G) 2024 (H)

Commercial References:

(A) Name of Account (B) Account Number	(C) Phone Number (D) Contact Person	(E) Address/ Fax Number
1. (A) HOLT CAT (B)	(C) Westin Pruski - (512) (D) 618-1222	(E) 9601 S-I35 Frontage Rd Austin TX 78744
2. (A) Herc Rentals (B)	(C) Bobby Tumey - Office: (D) 512-243-9822	(E) 10926 S Hwy 183, Austin, TX 78747
3. (A) Opifex (B)	(C) Austin Cox - (737) 637-5717 (D)	(E) 12111 S Hwy 183, Buda, TX 78610

TERMS AND CONDITIONS OF AGREEMENT

Use of Account. Should ASCO elect to extend credit to Business under this Agreement, Business will use this account in accordance with the terms and conditions stated in this Agreement. This Agreement is binding on the Business unless and until ASCO receives written notification from the Business that the account is to be closed. ASCO may in its sole discretion elect not to extend credit under this Agreement, in which event this Agreement will be automatically terminated. Should credit be extended to Business under this Agreement, ASCO may close the account at any time and for any reason by notification to Business; however, the closing of the account by ASCO will not relieve Business of the obligation to pay all amounts then owing on the account.

Business Purpose. The Business agrees that the account is a business account, to be used only for commercial, business, agricultural, and governmental purposes. The account will not be used for personal, family, or household purposes.

Authority of Persons Signing. The person signing this Agreement on behalf of Business represents and warrants that (i) he or she is authorized by the Business to enter into this Agreement on behalf of Business; and (ii) the information provided to ASCO in this Agreement regarding the Business is true and correct, and is given for the purpose of obtaining credit. In regard to equipment and parts sold or rented to Business under this Agreement, and in regard to repairs made, Business will be requested to sign sales or rental contracts, invoices, work orders or other documents relating to the specific transaction [the "Contract(s)"]. **Every person signing a Contract on behalf of Business under this Agreement will be presumed by ASCO to have full authority to execute the Contract as an authorized agent of Business unless (i) Business has provided to ASCO in writing a list of persons who may act on behalf of the Business; or (ii) Business notifies ASCO in writing within 10 days from the date of an invoice issued under the Contract, advising ASCO that the person signing the Contract did not have authority to sign; and, failure of Business to so notify ASCO within the stated period of time will conclusively establish the authority of the person signing the Contract to act as an authorized agent on behalf of Business.**

Agreement to Pay Account. Business agrees to pay to ASCO at ASCO's place of business in Lubbock, Lubbock County, Texas, all indebtedness now or hereafter owing by Business, whether individually, partnership, corporation, limited liability company, or other entity as indicated in this Agreement. Invoices issued to Business under this Agreement and/ or the Contracts are payable upon receipt. Business agrees to pay finance charges at 18% per annum on all invoices or amounts not paid by Business within 30 days of the date of the invoice.

Use of Information. Business and Guarantor authorize ASCO to obtain and retain all information as ASCO may require concerning this Application and Agreement. ASCO has the authority to run credit checks on Business and Guarantor and to verify the accuracy of the information provided in this Agreement, contact references, check credit, and obtain credit reports. Business and Guarantor agree that the information provided in this Agreement or any exhibit to this Agreement and any other information obtained by ASCO in relation to this Agreement will remain the property of ASCO, regardless of whether or not credit is granted.

Guaranty. Unless Business is a sole proprietorship, the attached Guaranty agreement must be signed by an owner, partner, or other person with an interest in the Business.

Governing Law and Enforcing ASCO's Rights.

A. Business agrees to pay all costs of collection including court costs, reasonable attorney's fees and expenses, and other collection costs.

B. ASCO will not lose its rights under this Agreement by reason of any delay in enforcing its rights or failing to enforce them.

C. **EXCLUSIVE JURISDICTION AND VENUE FOR ANY LITIGATION BETWEEN THE BUSINESS, ASCO AND ANY GUARANTOR IS IN ANY DISTRICT COURT OR COUNTY COURT AT LAW OF LUBBOCK COUNTY, TEXAS, WITH TEXAS LAW BEING APPLICABLE.**

D. **BUSINESS AND ANY GUARANTOR HEREBY UNCONDITIONALLY WAIVE ITS RIGHTS TO A JURY TRIAL.**

I (we) have thoroughly read and do understand this Agreement and by evidence of my (our) signature(s), agree to the terms.

Signature: Noah Schochet
Title: CEO
Printed Name: Noah Schochet
Date: 10/22/2025

GUARANTY

[REQUIRED FOR ANY APPLICANT THAT IS NOT A SOLE PROPRIETORSHIP]

In consideration of credit being extended to the above named Business pursuant to the credit terms set forth in the Agreement, I (the "Guarantor") personally guarantee all indebtedness incurred by Business and owing to ASCO. I agree that this guaranty is a primary, absolute, irrevocable, continuing and unconditional guaranty of payment and performance in Lubbock County, Texas, and not of collection, and is independent of the Business' obligations under the account or any Contract with ASCO. This Guaranty will remain in effect regardless of any modification or extension of the indebtedness owing by the Business. Guarantor waives all notices of acceptance, modification, extension, and default and any other notice to the extent allowed by law. Guarantor will, within five (5) days from date of notice of the account being past due, pay the amount due. Guarantor agrees to pay all costs of collection including court costs, reasonable attorney's fees and expenses, and other collection costs. I have read the Agreement and this Guaranty, and all terms and conditions contained in this Agreement and Guaranty, and by evidence of my signature, agree to the terms and conditions. This Guaranty binds me and my heirs, successors and assigns. *I understand and agree that ASCO would not be willing to extend credit to Business except for the personal guarantee being herein made by Guarantor.*

Signature: Noah Schochet
Printed Name: N/a
Drivers License #: n/a State: n/a
Social Security #: n/a
Birthdate: n/a



